INDUS WATERS TREATY

BRIDGING THE DIVIDE

By Moazum Mohammad

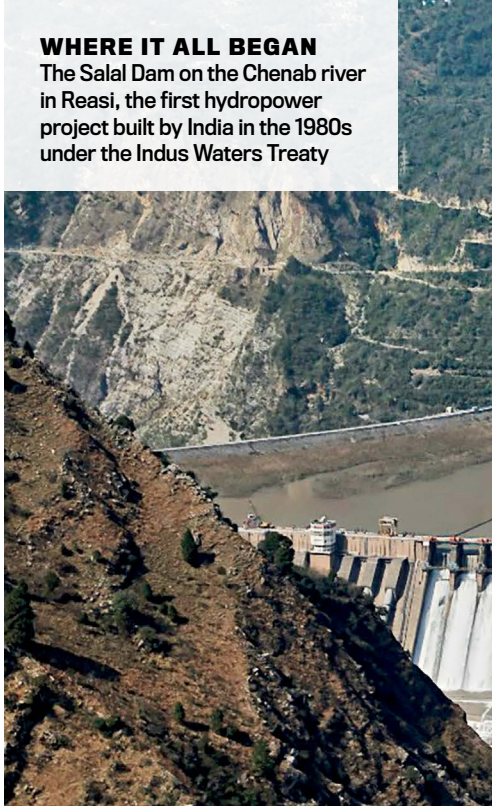
In the last week of June, a high-profile delegation from Pakistan travelled to Jammu and Kashmir to inspect hydropower projects covered under the Indus Waters Treaty (IWT), marking the first such visit in over five years to address differences between the two South Asian nations over shared water resources. The delegation, part of a Neutral Expert panel set up by the World Bank at India's request, was airlifted by helicopters amid tight security to Srinagar and Jammu's Kishtwar, where the disputed Ratle project is located. Accompanied by 25 liaison officers from the J&K administration, the full panel comprised at least 40 members from the US, UK, Australia, Canada, Russia and other nations, alongside Indian and Pakistani representatives.

This visit, coming amid frozen bilateral ties, has reignited discussions about the treaty's future and its potential to serve as a bridge between the two estranged neighbours. Michael Kugelman, director of the South Asia Institute at the Wilson Center in Washington, D.C., views the delegation's visit as "significant", indicating both countries' commitment to cooperation within the treaty's framework. "It shows that the IWT can't necessarily be taken for granted anymore after it has gotten caught up in wider bilateral tensions in recent years," he notes.

The IWT, signed in 1960, has withstood the test of time, enduring through three wars and bitter hostilities. It allocates the eastern rivers (Sutlej, Beas, and Ravi) to India and the western rivers (Indus, Jhelum, and Chenab) to Pakistan, with some provisions for limited use of the western rivers by India. The treaty also provides for a graded mechanism to handle issues, with "questions" to be handled by a Permanent Indus Commission, "differences" by a Neutral Expert and "disputes" by a Court of Arbitration in The Hague. However, the past five years, particularly since the abrogation of Article 370 in J&K, have seen increased tensions over water resources, with the Kishanganga hydropower project, which diverts water from the Kishanganga river to a power plant in the Jhelum river basin, and the Ratle project, coming up on the Chenab, at the centre of the dispute.

The treaty's dispute resolution mechanisms have been repeatedly put to the test. Himanshu Thakkar, coordinator for the South Asia Network on Dams, Rivers and People, explains that Pakistan's objections to projects on western rivers stem from the treaty's allocation of rights. Previous disputes have led to modifications in project designs, setting precedents for future developments. India's concerns on alleged deficits in the World Bank's impartiality in managing these disputes have added another layer of complexity. The simultaneous appointment of a Neutral Expert and a Court of Arbi-

WHERE IT ALL BEGAN
The Salal Dam on the Chenab river in Reasi, the first hydropower project built by India in the 1980s under the Indus Waters Treaty



ABID BHAT

TROUBLED WATERS

AMONG OTHER ISSUES, THE INDEPENDENCE OF INDIA AND PAKISTAN IN 1947 SPARKED DISPUTES OVER SHARED RIVER RIGHTS

- **1951-1960:** World Bank mediates negotiations for joint management of the Indus basin
- **Sept. 19, 1960:** Prime Minister Jawaharlal Nehru and Pakistan president Ayub Khan **sign the Indus Waters Treaty** in Karachi



- **1970s-2000s:** Disputes arise over various hydropower projects, including the maiden Salal Dam in Reasi, leading to interventions on case-to-case basis
- **2015:** Pakistan requests Neutral Expert to resolve the dispute over Kishanganga and Ratle projects; later proposes Court of Arbitration instead